

25STLC01866 25STLC01866

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-15

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Case Number: 25STLC01866 Hearing Date: September 15, 2026 Dept: 25

HEARING

DATE: Tues., September 15, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Cross River Bank v. Lang COMP FILED: 03-10-25

CASE NUMBER: 25STLC01866

NOTICE: OK

PROCEEDINGS: MOTION TO SET ASIDE CCP 664.6 DISMISSAL, AND
ENTER JUDGMENT AGAINST DEFENDANT

MOVING PARTY: Plaintiff

Cross River Bank

RESP. PARTY: None

MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT PURSUANT TO STIPULATION

(Code Civ. Proc., § 664.6)

TENTATIVE RULING:

The Court GRANTS Cross River Bank's
motion to set aside the dismissal and enter judgment pursuant to the
stipulation.

The dismissal entered on March 23,

2026 is hereby SET ASIDE AND VACATED.

Judgment is entered against Richard

Lang in the amount of \$17,645.19, reflecting \$17,939.19 in principal, \$502.00 in court costs, less \$796.00 for payments received.

Cross

River is to give notice.

SERVICE:

☒ Proof

of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☒ 16/21

Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 11, 2026 ☐ Late ☒

None

REPLY: None

filed as of September 11, 2026 ☐ Late ☒

None

ANALYSIS:

Cross River

Bank sued Richard Lang for breach of contract.

Lang answered. The parties then

settled and entered a stipulation that required Lang to pay \$398.00 on February 26, 2026, make 22 monthly payments of \$398.00 starting in March 2026, and to make a final payment of \$396.00 in January 2028. The Court dismissed this action without prejudice and retained jurisdiction pursuant to Code of Civil Procedure section 664.6 to enforce the stipulation. Lang made payments totaling \$796.00 but has failed to make any payments since April 2026. Cross River therefore moves to set

aside the dismissal and enter judgment against Lang pursuant to the stipulation. Lang has not opposed the motion.

Code of

Civil Procedure section 664.6, subdivision (a), allows a court to enter judgment pursuant to the terms of a written, signed settlement. If the parties agree, a court may dismiss the case without prejudice and retain jurisdiction to enforce the settlement until full performance is made. (Ibid.)

The

stipulation between Cross River and Lang is valid and enforceable under Code of Civil Procedure section 664.6. In the event of breach, the stipulation provides that Lang is liable for the principal sum of \$17,939.19, plus \$502.00 in court costs, minus any payments Lang made before breaching.

Cross

River requests a judgment of \$17,645.19 against Lang, reflecting \$17,939.19 in principal, \$502.00 in court costs, less \$796.00 for payments received from Lang. That amount is supported by Cross River's motion, stipulation, and memorandum of costs.

Accordingly,

the Court GRANTS Cross River's motion to set aside the dismissal entered on March 23, 2026, and enters judgment pursuant to the stipulation in the amount of \$17,645.19 against Lang.

Cross

River is to give notice.